

Iqbal Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 May 2017 · Writ-C No. 19542 of 2017 · Writ-C No. 19542 of 2017 · **Writ disposed; petitioner directed to apply under Clause 6.14 to the competent officer.**

HEADNOTE

A consumer of Pashchimanchal Vidyut Vitran Nigam Limited, seeking installment facility for electricity arrears after a factory fire, applied to the Chairman/Managing Director of U.P. Power Corporation Limited. The Division Bench held that Clause 6.14 of the U.P. Electricity Supply Code, 2005 vests installment power only in officers of the licensee not below Executive Engineer, and that an application to UPPCL — a separate company — is not an application to the appropriate authority. The writ was disposed of with a further opportunity to apply to respondent no. 4 for a speaking order under Clause 6.14.

FACTUAL SUMMARY

The petitioner, sole proprietor of M/s Sabri Ice Factory at Muzaffarnagar, was a consumer of Pashchimanchal Vidyut Vitran Nigam Limited. An accidental ammonia-gas leak and fire substantially damaged the factory machines and closed the business. Unpaid energy charges led to a bill-cum-demand dated 1 March 2017 for Rs 53,37,888.22. An earlier writ (Writ Petition No. 12944 of 2017) had been disposed of with liberty to invoke Clause 6.14. The petitioner then sent an application dated 28 March 2017 by registered post to the Chairman/Managing Director of U.P. Power Corporation Limited.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility — competent authority of the licensee

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 permits installment facility only to consumers in financial distress, and only an officer of the licensee not below the rank of Executive Engineer may grant it. A consumer of Pashchimanchal Vidyut Vitran Nigam Limited who applies to the Chairman/Managing Director of U.P. Power Corporation Limited — a separate company — has not approached the appropriate authority, so the licensee cannot be faulted for non-consideration. The writ was disposed of with liberty to apply to respondent no. 4 within three weeks, to be decided under Clause 6.14 by a reasoned speaking order within two months. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer of Pashchimanchal Vidyut Vitran Nigam Limited, seeking installment facility for electricity arrears after a factory fire, applied to the Chairman/Managing Director of U.P. Power Corporation Limited. The Division Bench held that Clause 6.14 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON THE MERITS TO INSTALLMENT FACILITY UNDER CLAUSE 6.14

Left to respondent no. 4 to decide in accordance with Clause 6.14 by a reasoned speaking order ¶ 1